

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Mandate

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Issued July 30, 2026

The judgment entered July 9, 2026 is now issued as the mandate of this court. The attached published opinion and judgment resolve the appeal as follows: the mitigation judgment as a matter of law is reversed; the conditional Rule 59 damages new trial is affirmed; the damages-only scope of that new trial is affirmed; and the amended judgment is vacated with the case remanded for the limited retrial.

The Rule 40 rehearing period expired July 23 without a petition. No stay or contrary order was entered, and the seven-day Rule 41 interval ended today. Issuance is therefore timely in the ordinary course. The mandate transmits the appellate judgment; it does not reopen appellate briefing, change a disposition component, or decide the financial result of the coming trial.

The clerk shall send this mandate, judgment, and opinion to the clerk of the fictional United States District Court for the Western District of North Carolina in Case No. SYN-WDNC-24-CV-0520. Electronic notice shall also issue to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb.

Proceedings on remand

Jurisdiction returns for proceedings consistent with the opinion. Contract liability and shipment causation remain fixed by the first jury's findings and are not subjects of the remand trial. The district court shall conduct a new trial of gross damages and Granite Heron's mitigation defense, considering those financial subjects together because their schedule and cost inputs overlap.

Granite Heron retains the burden to prove unreasonable mitigation conduct and the amount by which recoverable damages should be reduced. Blue Ember may present its gross-damages proof and answer the Cobalt Finch evidence. Nothing in the mandate directs a \$300,000 or \$1,500,000 deduction, binds the new jury to a prior model, or predetermines the resulting net award.

The October 15, 2025 original judgment is not immediately payable as the final recovery because the affirmed conditional new trial became operative when JMOL was reversed. The December 15 amended judgment was vacated and cannot supply a collectible final amount. After the limited trial, the district court will enter a new judgment based on the verdict and any lawful posttrial proceedings.

Issued under the seal of this fictional exercise court on July 30, 2026 by the Fictional Fourth Circuit exercise clerk, at the direction of Composite Jurist March, Composite Jurist Rowan, and Composite Jurist Slate.